



CHAPTER 38.

An Act to authorise the giving of financial assistance towards the expenses incurred by local authorities in providing housing accommodation for the agricultural population; to promote the provision of new housing accommodation to replace accommodation which is occupied by members of the agricultural population and is unfit for human habitation or overcrowded; to amend the provisions of the Housing (Scotland) Acts, 1925 to 1935, relating to charging orders, insanitary dwelling-houses, the recovery of expenses by instalments, the provision of water-closets, and the making of byelaws as to accommodation for seasonal workers; to amend the provisions of section one hundred and twenty-five of the Public Health (Scotland) Act, 1897; to authorise the making of byelaws with respect to premises used for the accommodation of agricultural workers; and for purposes connected with the matters aforesaid. [13th July 1938.]

A.D. 1938.

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BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

CONTRIBUTIONS TOWARDS EXPENSES OF ACCOMMODATION FOR AGRICULTURAL POPULATION.

1.—(1) The Department shall, subject to the provisions of this Part of this Act, undertake to make, and

Exchequer
contri-
butions

[CH. 38.] *Housing (Agricultural [1 & 2 GEO. 6.]
Population) (Scotland) Act, 1938.*

A.D. 1938. make, contributions out of moneys provided by Parliament
— towards any expenses incurred by a local authority in
PART I. providing under Part III of the Act of 1925 housing
—cont. accommodation for the agricultural population, in so far
towards as such accommodation is provided with the approval of
expenses of the Department in houses the erection of which has been,
accommo- or is, begun on or after the third day of November
dation for nineteen hundred and thirty-seven.
agricultural
population.

(2) Before undertaking to make any contribution under this section, the Department shall be satisfied with the adequacy of the measures being taken by the local authority for dealing with the clearance of unhealthy areas and the demolition or closing of insanitary houses, and for providing accommodation for the persons to be displaced by or in consequence of the measures so taken and for the purpose of putting an end to overcrowding.

(3) A contribution under this section shall be of such amount not being less than ten pounds ten shillings as the Department may with the sanction of the Treasury determine, payable annually for a period of forty years in respect of each house provided with the approval of the Department; and in determining the amount of the contribution so payable by them, the Department shall take into consideration the cost of providing the house, the rent which it will be practicable to obtain therefor, the expenditure already incurred and to be incurred by the local authority under the enactments relating to housing, and the general financial resources of the local authority :

Provided that the amount of the contribution payable in respect of any house shall not exceed fifteen pounds unless the Department are satisfied that the annual expenditure likely to be incurred by the local authority in respect of the house is, in consequence of the remoteness of the site thereof from centres of supply of building labour and material, substantially greater than the equivalent of nineteen pounds ten shillings per annum for forty years.

(4) No contribution shall be made under this section towards any expenses in respect of which the Department are required to make contributions by virtue of section twenty-three of the Act of 1930 or of section thirty of the Act of 1935.

2.—(1) A local authority to whom the Department have undertaken to make a contribution under the foregoing section of this Act in respect of any house shall make in respect thereof a contribution out of the appropriate rate in accordance with the provisions of this section.

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PART I.
—cont.
Local authorities' contributions towards expenses of accommodation for agricultural population.

(2) A contribution under this section shall be provided by equal annual instalments during a period of sixty years from the date of the completion of the house, and shall be of such amount as to be equivalent, when so provided, to the appropriate sum (as hereinafter defined) provided annually for a period of forty years :

Provided that, where the local authority are of opinion that the contribution should be provided by annual instalments during a period of less than sixty years, the Department may on the application of the local authority direct that this subsection shall have effect in relation to the contribution as if there had been substituted therein, for the reference to a period of sixty years, a reference to such period, not being less than forty years, as the Department may think proper.

(3) For the purposes of this section, the appropriate sum shall be a sum equal to one-third of the amount of the Department's contribution (any fractional part of one shilling exceeding sixpence being reckoned as one shilling, and any fractional part of one shilling not exceeding sixpence being disregarded) or the sum of four pounds ten shillings, whichever is the less.

3.—(1) Section thirty-three of the Act of 1935 (which relates to the review of Exchequer contributions) shall have effect as if—

Amendment of Act of 1935.

(a) in subsection (1), after the words " this Act " there were inserted the words " and section one of the Housing (Agricultural Population) (Scotland) Act, 1938 "; and

(b) in subsection (8), after the words " section thirty of this Act," and after the words " the said section thirty," there were inserted respectively the words " or under section one of the " Housing (Agricultural Population) (Scotland) Act, 1938 " and the words " or in subsection (3) of the said section one."

[CH. 38.] *Housing (Agricultural [1 & 2 GEO. 6.]
Population) (Scotland) Act, 1938.*

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PART I.
—*cont.*

(2) Subsection (3) of section forty-seven of the Act of 1935 (which relates to the conditions to be observed by local authorities) shall have effect as if at the end thereof there were added the following words:—

“and that a number of houses equal to the number in respect of which the Department have undertaken to make a contribution under section one of the Housing (Agricultural Population) (Scotland) Act, 1938, are reserved for the agricultural population.”

(3) Subsection (5) of the said section forty-seven shall in its application to houses which are, under subsection (3) of the said section, reserved for the agricultural population, have effect as if for the reference to persons of the working classes there were substituted a reference to the agricultural population.

(4) The Third Schedule to the Act of 1935 shall have effect as if—

(a) to Part I thereof, there were added the following words:—

“9. Section one of the Housing (Agricultural Population) (Scotland) Act, 1938”; and

(b) in Part III thereof, after paragraph (8) there were inserted the following paragraph:—

“8A. The contributions payable by the local authority under section two of the Housing (Agricultural Population) (Scotland) Act, 1938.”

PART II.

**REPLACEMENT OF UNSATISFACTORY HOUSES OCCUPIED
BY AGRICULTURAL WORKERS AND OTHERS.**

Schemes
for
replacing
unsatis-
factory
houses.

4.—(1) A local authority may, and if so required by the Department shall, submit to the Department a scheme or schemes for assisting the provision of housing accommodation in new houses in replacement of—

(a) houses or other premises which, being unfit for human habitation and not capable at a reasonable expense of being rendered so fit, are to be demolished or closed under Part II of the Act

of 1930, and which come within any of the following descriptions, that is to say:—

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PART II.
—cont.

(i) houses, bothies or chaumers or similar premises situated on a farm and occupied in accordance with their contracts of service by agricultural workers employed thereon;

(ii) houses occupied by persons who, being owner occupiers of farms which either do not exceed fifty acres in area or are entered in the valuation roll at a gross annual value not exceeding fifty pounds, are of substantially the same economic condition as agricultural workers;

(iii) houses occupied by statutory small tenants;

(iv) houses occupied by landholders;

(v) houses in the Highlands and Islands occupied by members of the agricultural population who are of substantially the same economic condition as landholders;

(b) houses, bothies or chaumers or similar premises situated on a farm and occupied in accordance with their contracts of service by agricultural workers employed thereon, which are not in all respects fit for human habitation or are overcrowded, and which by the execution of the works of reconstruction hereinafter mentioned will be combined with adjoining occupied houses or premises and will cease to be occupied as separate houses or premises;

and on approval by the Department of any scheme so submitted, a local authority may in accordance therewith give assistance in the manner hereinafter provided.

(2) Assistance under this section shall be given by way of payment on the completion of the house of a lump sum not exceeding either—

(a) one half of the cost of the house; or

(b) one hundred and sixty pounds in the case of a house containing three apartments, or two hundred pounds in the case of a house containing more than three apartments.

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PART II.
—cont.

For the purpose of this subsection, the reasonable cost of obtaining a title to land on which there is to be erected a house in replacement of any house such as is mentioned in sub-paragraph (v) of paragraph (a) of subsection (1) of this section shall be deemed to form part of the cost of the house.

(3) No assistance under this section shall be given in respect of any house unless—

- (a) the application for assistance is made to the local authority within five years after the passing of this Act;
- (b) the house contains at least three apartments of superficial areas not less than such areas as may be specified in the scheme of assistance;
- (c) the house contains a watercloset, a scullery with a sink and drainage therefor, a fixed bath in a bathroom and such other conveniences as may be specified in the scheme of assistance :

Provided that, where it is not reasonably practicable to provide a watercloset, the local authority may, with the approval of the Department, and subject to such conditions as the Department may impose, dispense with the provision thereof.

(4) Without prejudice to the provisions of the last foregoing subsection, no assistance under this section shall be given in respect of the replacement of any house or other premises such as are mentioned—

- (a) in paragraph (a) of subsection (1) of this section, unless such action has been taken under Part II of the Act of 1930 as will secure that the house or premises will be demolished on the completion of the house provided in replacement thereof or will not thereafter be used for human habitation ;
- (b) in paragraph (b) of the said subsection (1), unless the local authority are satisfied that such works of reconstruction will be executed in accordance with plans approved by them, as will combine the house or premises with an adjoining occupied house or premises and will convert both

houses or premises into a single house in all respects fit for human habitation and containing, unless the local authority with the approval of the Department otherwise permit, at least three apartments of such superficial areas as may be specified in the scheme of assistance, a scullery with a sink and drainage therefor, a fixed bath in a bathroom and such other conveniences as may be specified in the said scheme and where reasonably practicable a watercloset;

- (c) in sub-paragraph (i) of paragraph (a), or in paragraph (b), of the said subsection (1), unless the house provided in replacement is required for the accommodation of an agricultural worker employed on the farm and accommodation suitable to the requirements of the worker and of his employment is not available in the locality and it is not practicable for the local authority to provide such accommodation under a scheme for the provision of housing accommodation for the agricultural population of the locality.

(5) The rules contained in the First Schedule to this Act shall apply with respect to applications for and the giving of assistance under this section.

(6) Where assistance is given under this section in respect of the replacement of a house or premises and an undertaking has been given that the house or premises will not be used for human habitation or a closing order has been made with respect thereto, then, notwithstanding anything in Part II of the Act of 1930, it shall not be competent for such undertaking to be cancelled, or such closing order to be determined.

(7) A local authority may in any case refuse to give assistance under this section on any grounds which seem to them sufficient.

5.—(1) The conditions specified in this section shall, in so far as they apply to any house and subject as hereinafter provided, apply in relation to the house for a period of forty years from the date of its completion and shall, so long as they continue to have effect, be deemed to be part of the terms of any lease, agreement for a lease, or tenancy of the house granted by the owner thereof, and shall be enforceable accordingly.

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PART II.

—cont.

Conditions applying to houses in respect of which assistance has been given.

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PART II.
—cont.

(2) It shall be a condition applicable in relation to every house in respect of which assistance has been given under section four of this Act—

- (a) that the house shall during the said period of forty years be so maintained as to be in all respects fit for human habitation; and
- (b) that the owner of the house shall from time to time, on being so required by the local authority, furnish to the authority a certificate to the effect that the conditions applicable in relation to the house are being complied with, and any tenant of the house shall, on being so required in writing by the owner, furnish to him such information as he may reasonably require for the purpose of enabling him to comply with this condition.

(3) It shall also be a condition applicable in relation to any house in respect of which assistance has been given as being a house provided in replacement of any house or other premises such as are mentioned in—

- (a) sub-paragraph (i) of paragraph (a), or paragraph (b), of subsection (1) of section four of this Act, that if at any time within the said period of forty years it is not required for the accommodation of an agricultural worker employed by the person who pays occupier's rates in respect thereof, it shall not be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve;
- (b) sub-paragraphs (ii) and (iii) of paragraph (a) of the said subsection, that if at any time within the said period of forty years it is not required for the accommodation of the person working the farm or holding on which it is situated, it shall not be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve;
- (c) sub-paragraph (iv) of paragraph (a) of the said subsection, that if at any time within the said period of forty years the holding on which it is situated ceases to be subject to the provisions of the Small Landholders (Scotland) Acts, 1886

to 1931, the house shall not be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve;

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PART II.
—cont.

- (d) sub-paragraph (v) of paragraph (a) of the said subsection, that it shall not at any time within the said period of forty years be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve.

(4) In the event of a breach of any of the conditions which apply by virtue of this section in relation to any house in respect of which assistance has been given, the owner for the time being of the house shall forthwith become liable to repay to the local authority a sum bearing the same proportion to the sum paid by way of assistance as the period between the date when the said breach occurred and the expiration of the period of forty years during which the condition is applicable, bears to the said period of forty years, together with compound interest thereon as from the date on which assistance was given, calculated at the prescribed rate and with yearly rests : and on repayment being so made the conditions aforesaid shall cease to apply in relation to the house :

Provided that, if the local authority in any such case are satisfied that the breach was not due to the act, default, or connivance of the owner, the authority may, with the consent of the Department and subject to such conditions, if any, as the Department may approve, waive the liability of the owner to make repayment under the foregoing provision, and in the case of a continuing breach may, with the like consent and subject to such conditions as aforesaid, suspend the enforcement of that liability for such period as appears to them to be necessary for enabling the owner to remedy the breach.

6. The owner of a house in respect of which assistance has been given under section four of this Act may at any time within the period of forty years during which conditions apply by virtue of this Part of this Act in relation to the house pay to the local authority a sum bearing the same proportion to the sum paid by way of assistance as the period between the date on which such

Voluntary
repayment
of assistance
by owners.

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A.D. 1938. payment is made and the expiration of the said period of
— forty years bears to the said period of forty years, together
PART II. with compound interest thereon as from the date on which
—cont. assistance was given, calculated at the prescribed rate and
with yearly rests and thereupon the conditions aforesaid
shall cease to apply in relation to the house.

Special pro-
visions with
respect to
payment of
compensa-
tion, &c.

7.—(1) Where under section four of this Act assist-
ance is given to a landholder or statutory small tenant in
respect of a house on his holding, the local authority shall
forthwith intimate to the landlord of the holding that
assistance has been so given and shall inform him of the
amount thereof.

(2) If at any time within the period of forty years
during which conditions apply by virtue of this Part of this
Act in relation to a house provided on a farm or holding
otherwise than by the landlord thereof compensation
becomes payable in respect of the house as for an improve-
ment under the Agricultural Holdings (Scotland) Acts,
1923 and 1931, or the Small Landholders (Scotland) Acts,
1886 to 1931, so much of the value of the house as is
attributable to the sum paid by way of assistance under
section four of this Act shall be taken into account in
assessing the compensation so payable and shall be
deducted therefrom.

(3) The landlord of a farm or holding on which there
is a house in relation to which conditions apply by virtue
of this Part of this Act shall not at any time within the
period during which the conditions apply be entitled to
obtain any consideration by way of rent or otherwise in
respect of so much of the value of the house as is attribu-
table to the sum paid by way of assistance under section
four of this Act.

Exchequer
contribu-
tions to
expenses of
local
authorities
under s. 4
of Act.

8.—(1) The Department shall, subject to such
conditions as to records, certificates, audit or otherwise
as they may with the approval of the Treasury deter-
mine and subject to the provisions of this section,
make or undertake to make contributions towards
any expenses incurred by a local authority in giving
assistance under section four of this Act.

(2) Any such contributions shall be made by way of
annual payments for a period of forty years from the
completion of the house in respect of which assistance is
given, and shall be of an amount equal, in any case where

assistance is given in respect of a house provided in replacement of any such house as is mentioned in sub-paragraphs (ii), (iii), (iv) or (v) of paragraph (a) of subsection (1) of section four of this Act which is situated in the Highlands and Islands, to seven-eighths, and in any other case in which assistance is given under the said section, to three-quarters of the estimated average annual payments falling to be made by the local authority in respect of the charges on account of loans raised by them for the purposes of payments made under the said section four, or which would have fallen to be made if the sums so expended by them had been raised by means of loans.

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PART II.
—cont.

(3) In the event of a breach of any condition applicable by virtue of this Part of this Act in relation to a house, the local authority shall be liable to repay to the Department in respect of each payment already made by the Department a sum bearing the same proportion to the amount of the payment as the sum (excluding interest) repayable to the local authority by the owner of the house under subsection (4) of section five of this Act bears to the sum paid by them by way of assistance, together with compound interest thereon as from the date on which the payment was made, calculated at the prescribed rate and with yearly rests :

Provided that—

- (a) the provisions of this subsection shall not apply if the liability of the owner to make repayment in respect of the breach of the condition has been duly waived in accordance with the provisions of this Part of this Act, or if and so long as the enforcement of that liability is duly suspended in accordance with those provisions; and
- (b) if the local authority show to the satisfaction of the Department that, notwithstanding that they have taken all practicable steps for the purpose, they have been unable to recover the whole or some part of any sum repayable to them by reason of the breach of the condition, the Department may remit the repayment of the whole or any part of the sum repayable to them under this subsection.

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PART II.
—cont.

(4) Where under section six of this Act any sum is repaid to the local authority in respect of any house, the local authority shall be liable to repay to the Department in respect of each payment already made by the Department a sum bearing the same proportion to the amount of the payment as the sum (excluding interest) repaid to the local authority bears to the sum paid by them by way of assistance, together with interest as aforesaid.

Expenses of
Depart-
ment,
borrowing
power of
local
authorities
for the
purposes of
Part II of
Act
and inter-
pretation.

9.—(1) Any expenses incurred by the Department under this Part of this Act shall be defrayed out of moneys provided by Parliament.

(2) Section sixty-eight of the Act of 1925 (which confers on local authorities power to borrow for certain purposes) shall have effect as if the purposes of this Part of this Act had been included amongst the purposes specified in subsection (1) of that section; and the raising of money by a local authority for the purposes of this Part of this Act shall be a purpose for which the Public Works Loans Commissioners may lend to the local authority.

(3) In this Part of this Act the expression “prescribed rate” means such rate as may be prescribed by the Department with the approval of the Treasury.

Acceptance
of assistance
not to dis-
qualify
for member-
ship of local
authority.

10. It is hereby declared that a person to whom assistance is given by a local authority under this Part of this Act is not thereby disqualified for being elected or being a member of the local authority or of any committee or sub-committee thereof.

PART III.

MISCELLANEOUS.

Provisions
with
respect to
charging
orders and
the recovery
by instal-
ments of
cost of
executing
works.

11.—(1) Where under section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, or section twenty of the Act of 1925, or section fifteen of the Act of 1930, a local authority have themselves incurred expenses in the execution of works, it shall be competent for them to make a charging order in favour of themselves in respect of such expenses in like manner as they may make a charging order in favour of an owner under section twenty-one of the Act of 1925, and the provisions

of sections twenty-one and twenty-two of the said Act shall, subject to any necessary modifications, apply to a charging order so made in like manner as they apply to a charging order made in favour of an owner.

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PART III.
—cont.
60 & 61 Vict.
c. 38.

(2) The provisions of subsection (3) of section fifteen of the Act of 1930 (which relate to the recovery of certain expenses by instalments) shall apply to the recovery of expenses incurred by a local authority in themselves executing works under section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, or section twenty of the Act of 1925, in like manner as they apply to the recovery of expenses incurred under subsection (1) of the said section fifteen.

12.—(1) For the avoidance of doubt it is hereby declared that for the purposes of section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, a house shall be deemed to be without a proper supply of wholesome water if in any case in which it is reasonably practicable to introduce such supply into the house, such supply has not been so introduced.

Inter-
pretation
and amend-
ment of
60 & 61 Vict.
c. 38, s. 125.

(2) The said section one hundred and twenty-five shall have effect as if after the words “into the house” there were inserted the words “with a sink and drainage therefor.”

13. Any watercloset provided under section twenty of the Act of 1925 shall, where it is reasonably practicable, be provided inside the dwelling-house or part thereof for which it is provided, or where that is not reasonably practicable, in a position readily accessible therefrom.

Amendment
of s. 20 of
Act of
1925.

14. The provisions of Part II of the Act of 1930 relating to insanitary dwelling-houses shall have effect in relation to premises occupied by agricultural workers, in like manner as if they were dwelling-houses notwithstanding that they are used for sleeping purposes only.

Application
of Part II of
Act of 1930
to certain
premises.

15. Section forty-six of the Act of 1935 (which relates to the power to withhold contributions in the event of default) shall have effect as if in paragraph (a) thereof after the words “this Act” there were inserted the words “or the Housing (Agricultural Population) (Scotland) Act, 1938.”

Amendment
of s. 46 of
Act of 1935.

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PART III.

—cont.

Additional
power of
Department
where local
authority
are in
default.

16. Where the Department, after having caused a public local inquiry to be held in pursuance of section thirty-seven of the Act of 1930, are satisfied that the local authority have failed to exercise any of their powers under Part III of the Act of 1925 to provide housing accommodation for persons of the working classes who are members of the agricultural population, or under section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, in a case where these powers ought to have been exercised, the Department may, before making such an order as is mentioned in the said section thirty-seven, make an order declaring the local authority to be in default and directing the authority to exercise for the purpose of remedying the default such of their said powers, and in such manner, and within such time or times, as may be specified in the order; and if the local authority fail to comply with any requirement of the order within the time limited thereby for compliance with that requirement, the Department may make such an order as is mentioned in the said section thirty-seven.

Certain
persons
to be
deemed to
be owners
for certain
purposes.

17. A tenant, landholder, or statutory small tenant shall for the purposes of Part II of this Act be deemed to be the owner of any house on his farm or holding in respect of which he would, on the termination of his tenancy, be entitled to compensation under the Agricultural Holdings (Scotland) Acts, 1923 and 1931, or the Small Landholders (Scotland) Acts, 1886 to 1931, as for an improvement; and a landholder shall for the purposes of section twenty of the Act of 1925 be deemed to be the owner, and for the purposes of Part II of the Act of 1930 be deemed to be the owner and the person having control, of any house on his holding in respect of which he would be entitled to compensation as aforesaid under the Small Landholders (Scotland) Acts, 1886 to 1931.

Byelaws
relating to
accommo-
dation for
agricultural
workers.

18.—(1) Within six months of the passing of this Act or within such longer period as the Department may allow, a local authority shall make, with respect to bothies, chaumers and similar premises which are used for the accommodation of agricultural workers and are not part of a farmhouse, byelaws regarding any of the following matters, that is to say:—

- (a) the provision of a separate entrance in any case where the premises form part of other premises;

- (b) the provision of ventilation, floor area, and furnishing, including the provision of a separate bed and bedding for each worker;
- (c) the provision of adequate heating and lighting;
- (d) the provision of accommodation for personal clothing, and of facilities for personal ablution;
- (e) the painting, whitewashing or other cleansing of the premises at regular intervals;
- (f) the prevention of and safety from fire;
- (g) intimation to the local authority by farmers of the number of workers employed by them who are accommodated in bothies or in chaumers or similar premises;
- (h) the provision of a ventilated larder and a fire-place or stove suitable for cooking food and sufficient cooking utensils;
- (i) such other matters as the Department may from time to time prescribe:

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PART III.

—cont.

Provided that, if a local authority show to the satisfaction of the Department that it is unnecessary to make byelaws under this section, the Department may dispense with the making of such byelaws.

(2) Byelaws relating to paragraph (h) of the foregoing subsection shall apply only to premises in which the occupants cook their meals.

(3) Byelaws made by a local authority under this section may be limited to particular parts of the authority's district.

(4) Where a local authority fail within the said period of six months or within such longer period as aforesaid, to make, with respect to any of the matters specified in subsection (1) of this section, byelaws which are in the opinion of the Department sufficient and satisfactory, the Department themselves may make such byelaws, which shall be of the like force and effect as if they had been made by the local authority.

(5) Section eighty-four of the Act of 1925 shall have effect as if in proviso (a) after the words "seasonal workers" there were inserted the words "or any byelaws made under section eighteen of the Housing (Agricultural Population) (Scotland) Act, 1938".

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PART III.
—cont.
Amend-
ment of
s. 83 of Act
of 1925.

19.—(1) A local authority who at the date of the passing of this Act have not made byelaws under section eighty-three of the Act of 1925, which are in the opinion of the Department sufficient and satisfactory, shall within six months of the passing of this Act, or within such longer period as the Department may allow, make such byelaws :

Provided that, if the local authority show to the satisfaction of the Department that it is unnecessary to make byelaws under the said section, the Department may dispense with the making of such byelaws.

(2) Where a local authority fail within the said period of six months, or within such longer period as aforesaid, to make byelaws under the said section which are in the opinion of the Department sufficient and satisfactory, the Department themselves may make such byelaws, which shall be of the like force and effect as if they had been made by the local authority.

(3) Section eighty-three of the Act of 1925 shall have effect as if for subsection (3) thereof there were substituted the following subsection—

“(3) If in consequence of any byelaws made under this section a farmer or a fruit grower is required to provide accommodation involving the erection of additional buildings, he may require the landlord to erect such buildings on terms and conditions to be determined, failing agreement, by the Department of Agriculture for Scotland.”

Additional
provisions
with respect
to loans by
local
authorities.

20.—(1) Where in pursuance of section seventy-five of the Act of 1925 a local authority advance money to any person constructing a house in respect of which they have undertaken to give assistance under Part II of this Act, being a person entitled to grant a heritable security over the house, then, subject to the provisions of this section and to such conditions as may be approved by the Department, the advance may, in lieu of being secured by bond and disposition in security or other deed of security, be secured by an order (in this section referred to as a “charging order”) made by the local authority providing and declaring the house, or the house and such other subjects belonging to the person receiving the advance as the local authority and such person may agree, to be charged and burdened with an annuity to repay the amount of the advance.

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PART III.
—cont.

(2) The annuity charged shall commence from the date of the order, and shall be a sum of such amount and shall be payable to the local authority or their assignees for such period of years, not exceeding thirty, as the local authority and the person receiving the advance may agree.

(3) A local authority shall not make a charging order, and a charging order shall not be effectual, unless—

(a) the local authority have served on every person appearing in the Register of Sasines as the proprietor of, or as holding a heritable security over, the subjects or any part thereof to be charged and burdened with the said annuity, notice that if no objection is intimated to them in writing by such person within twenty-one days from the date of service of the notice, they intend to make such charging order; and

(b) no objection has been so intimated by any person on whom notice has been so served.

(4) The provisions of section twenty-two of the Act of 1925, shall apply to a charging order made under this section in like manner as they apply to a charging order made under section twenty-one of the said Act, subject to the following and any other necessary modifications—

(a) subsection (2) shall apply as if after the words “advances of public money” there were inserted the words—

“(d) any rentcharge secured on the premises by absolute order made under and in terms of the Improvement of Land Act, 1864, or the Lands Improvement Companies’ Acts, 1853 to 1920; 27 & 28 Vict. c. 114.

(e) any loan made for agricultural purposes in pursuance of the Agricultural Credits (Scotland) Act, 1929, by any company incorporated for the purposes of that Act, where such loan has been secured on the premises by a bond and disposition in security or other deed of security duly registered in the appropriate Register of Sasines; and 19 & 20 Geo. 5. c. 13.

(f) any charge on the premises created under any provision in any Act authorising

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PART III.

—cont.

a charge for recovery of expenses incurred by a local authority under section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, or section twenty of the Act of 1925, or section fifteen of the Act of 1930, or by an owner under Part I of the Act of 1925 ”;

(b) subsection (3) shall not apply.

(5) For the purpose of this section, a notice may be served by delivering it to the person on whom it is required to be served or by sending it by registered letter to such person at his usual or last known address, or if such person cannot be found, to the Extractor of the Court of Session. An acknowledgment endorsed on such notice or a copy thereof, by such person, or, where the notice is sent by registered letter, a certificate subscribed by the clerk to the local authority that such notice was duly posted and having the Post Office receipt for the registered letter attached, shall be conclusive evidence that such notice was duly served on the date stated in the acknowledgment or Post Office receipt.

Interpre-
tation.

21.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them, that is to say :—

25 & 26
Geo. 5. c. 41.

“ the Act of 1935 ” means the Housing (Scotland) Act, 1935 ;

“ agricultural population ” means—

(a) in relation to persons resident within a large burgh, persons of the working classes who are engaged in agriculture, and includes the dependants of such persons ; and

(b) in relation to persons resident outside a large burgh, persons of the working classes who are, or in their latest occupation were, engaged in agriculture or in an industry mainly dependent on agriculture, and includes the dependants of such persons ;

“ agriculture ” means the use of land for agricultural or pastoral purposes, or for the purpose of poultry farming or market gardening, or as an orchard or woodlands, or for the purpose of afforestation, and “ agricultural worker ” shall be construed accordingly ;

“ Highlands and Islands ” means the areas specified
in the Second Schedule to this Act, excluding
any large burgh ;

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PART III.

—cont.

“ landholder,” “ holding ” and “ statutory small
tenant ” have the meanings assigned to them by
the Small Landholders (Scotland) Acts, 1886 to
1931.

(2) In the Act of 1930 the expression “ this or the
principal Act,” and in the Act of 1930, the Act of 1935,
and section one hundred and forty-seven of the Public
Health (Scotland) Act, 1897, the expression “ Housing
(Scotland) Acts, 1925 to 1935,” shall, unless the context
otherwise requires, be construed as including references
to this Act.

22.—(1) This Act may be cited as the Housing
(Agricultural Population) (Scotland) Act, 1938, and shall
be construed as one with the Housing (Scotland) Acts,
1925 to 1935, and those Acts and this Act may be cited
together as the Housing (Scotland) Acts, 1925 to 1938.

Short title,
citation,
construc-
tion and
extent.

(2) Unless the context otherwise requires, references
in this Act to any enactment shall be construed as
references to that enactment as amended by any subse-
quent enactment, including this Act.

(3) This Act shall extend only to Scotland.

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SCHEDULES.

Section 4.

FIRST SCHEDULE.

RULES AS TO APPLICATIONS FOR AND GIVING OF ASSISTANCE UNDER PART II OF ACT.

1. The applicant for assistance shall furnish to the local authority full particulars of the house proposed to be erected, and of the house or other premises which it is to replace, together with a statement (approved by an officer of the local authority authorised in that behalf) of the estimated cost of the house, and such plans and specifications thereof as the local authority may require.

2. If the local authority approve the application they shall issue to the applicant a certificate of their approval which shall set out the terms and conditions upon which assistance will be given.

3. On the completion of the house the applicant shall furnish the local authority with such information as they may require as to the cost of the house and shall satisfy them that it has been erected in accordance with the terms and conditions of the certificate, and the local authority shall not be liable to give assistance until they are so satisfied.

Section 21.

SECOND SCHEDULE.

HIGHLANDS AND ISLANDS.

The counties of—

Argyll;
Caithness;
Inverness;
Ross and Cromarty;
Sutherland;
Orkney; and
Zetland.

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